

Merits

TD Bank brings this motion under C.C.P. § 581(f)(2), which states: “The court may dismiss the complaint as to that defendant when... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” However, the issue here is that TD Bank did not prevail on a demurrer. Rather, the underlying motion was for a judgment on the pleadings. Although a motion for judgment on the pleadings is evaluated on the same grounds as a general demurrer, it is subject to different procedural requirements. (See C.C.P. § 438.)

If the motion for judgment on the pleadings is “granted with respect to the entire complaint or answer with leave to file an amended complaint or answer, as the case may be, but an amended complaint or answer is not filed, then after the time to file an amended complaint or answer, as the case may be, has expired, judgment shall be entered forthwith in favor of the moving party.” (C.C.P. § 438(h)(4)(C).) The time to file an amended complaint expires after 30 days. (C.C.P. § 438(h)(2).) However, the court shall not enter judgment until a party moves for entry of judgment in its favor pursuant to a noticed motion. (C.C.P. § 438(i)(1)(B).) “At the hearing on the motion provided for in this subdivision, the court shall determine whether to enter judgment in favor of a particular party.” (C.C.P. § 438(i)(3).)

The Court construes this motion as a motion for entry of judgment under C.C.P. § 438(i)(1)(B). The Court granted TD Bank’s motion for a judgment on the pleadings on December 31, 2025, and granted Plaintiff leave to amend. Accordingly, Plaintiff’s time to amend the Complaint expired on January 31, 2026. (C.C.P. § 438(h)(2).) As of July 30, 2026, Plaintiff has failed to file an amended complaint against TD Bank.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501918	CONTRERAS VS VILLANUEVA	MOTION TO ADOPT APPRAISED FAIR MARKET VALUE PURSUANT TO THE PARTITION OF REAL PROPERTY ACT BY DIEGO CONTRERAS

Tentative Ruling: The Court continues the hearing to October 2, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507215	WALKER VS FCA US	MOTION FOR SANCTIONS BY FCA US

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601405	GHODS VS HEDAYATI	DEMURRER ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF MOHAMAD R. GHODS BY GHAFFAR K. HEDAYATI

Tentative Ruling: The Court OVERRULES the Demurrer. Answer shall be filed within ten (10) days of this Order.